

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Marc T. Lombardo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act facilitating assistance with Federal Operations Act.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marc T. Lombardo</i>	<i>22nd Middlesex</i>	<i>6/4/2025</i>

HOUSE No.

By Representative Lombardo of Billerica, a petition (subject to Joint Rule 12) of Marc T. Lombardo relative to civil immigration detainers and state and local law cooperation with U.S. Immigration and Customs Enforcement. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act facilitating assistance with Federal Operations Act.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 56 of chapter 6C of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by adding the following paragraph:-

3 The registry shall provide to a federal immigration authority any requested information
4 related to the subject of a federal civil immigration detainer.

5 SECTION 2. Chapter 22C of the General Laws is hereby amended by adding the
6 following section:-

7 Section 74. The department shall participate in the U.S. Immigration and Customs
8 Enforcement 287(g) program.

9 SECTION 3. Chapter 41 of the General Laws is hereby amended by inserting after
10 section 97F the following section:-

Section 97G. Local law enforcement agencies shall participate in the U.S. Immigration and Customs Enforcement 287(g) program. The department of state police shall provide funding to local law enforcement agencies for compliance with this section.

SECTION 4. Section 1 of chapter 124 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following clause:-

(v) ensure that not less than 5 per cent of the employees of the department are certified under the U.S. Immigration and Customs Enforcement 287(g) program.

SECTION 5. Chapter 276 of the General Laws is hereby amended by inserting after section 28 the following section:-

Section 28A. A court officer, local law enforcement officer or state police officer shall detain an individual for whom a federal immigration authority has issued a civil immigration detainer until the federal immigration authority takes custody of the individual, or for up to 96 hours, whichever occurs first. The court, sheriff's office, local law enforcement agency or department of state police shall notify the federal immigration authority that the individual has been detained, and shall coordinate the transfer of the individual to federal custody.